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Judgment Sheet
IN THE LAHORE HIGH COURT LAHORE
JUDICIAL DEPARTMENT

Criminal Revision No.17582 of 2025

(Muhammad Ashraf etc. Vs. Additional Sessions Judge etc.)

J U D G M E N T

Date of hearing: 22.04.2025

Petitioners by: Ch. Muhammad Naseer Gujjar, Advocate.
State by: Ms. Asiya Yasin, Deputy Prosecutor General.
Respondent No.2 by: M/S Mian Ali Akbar and Qaisar Naseem Awan Advocates.

Abher Gul Khan, J. Through the instant criminal revision moved under Sections 435/439 Cr.P.C. petitioners have challenged the *vires* of order dated 18.02.2025 passed by learned Additional Sessions Judge, Lahore, whereby he summoned all of them to face trial in a private complaint titled '*Mst. Naseem Rani. vs. Muhammad Ashraf etc.*', instituted under sections 302, 109, 148, 149 P.P.C.

2. The learned law officer left the matter on the discretion of the Court, whereas learned counsel appearing on behalf of respondent No.2 vehemently opposed instant petition and prayed for its dismissal.

3. Arguments heard, record perused.

4. Perusal of the record reveals that regarding the murder of Muhammad Akram, husband of Mst. Naseem Rani (respondent No.2) on 28.04.2024 at about 12:30 a.m. FIR was got registered on the same day at 11:35 a.m. and admittedly it was got registered on the complaint of Mst. Naseem Rani (respondent No.2) who did not nominate any accused and categorically mentioned in the body of complaint on the basis of which FIR was registered that three

unknown accused took life of Muhammad Akram and immediately after the occurrence when the accused fled away from the spot, her brother-in-law/real brother of deceased Muhammad Akram came at the spot. After registration of FIR, statement of Muhammad Ashraf (petitioner No.1) was got recorded under section 161 Cr.P.C. in which he implicated Mst. Naseem Rani (respondent No.2) for the commission of murder of his brother along with her son Muhammad Mustaqeem. After the statement of Muhammad Ashraf (petitioner No.1), Mst. Naseem Rani (respondent No.2) was involved in the case as culprit along with her son Muhammad Mustaqeem and during the course of investigation they got recovered the bloodstained clothes of the deceased along with weapon of offence i.e. club and shirt used for strangulating the deceased. When the post arrest bail of accused Mst. Naseem Rani (respondent No.2) was allowed by the court, she on the one hand was facing the trial in challan case and on the other hand filed a complaint under section 200 Cr.P.C on the basis of distorted and twisted facts on 16.09.2024 and impleaded eight respondents including two real brothers of deceased namely Muhammad Ashraf and Muhammad Akbar as well as his cousin Shahid Ali (petitioners No.1 to 3), who were witnesses in the challan case. In spite of filing of private complaint she did not allege any overt act to petitioners No.1 to 3 and surprisingly at serial No.4 mentioned three unknown accused despite the fact that private complaint can only be filed against accused with nomination and specific role. Not only the petitioners No.1 to 3, were impleaded as proposed accused but the police officials who investigated the matter in accordance with law were also impleaded as respondents to face the trial under sections 302, 109, 148, 149 P.P.C. for recovering case property i.e. articles with which she along with her son Muhammad Mustaqeem took the life of deceased. Para No.3 of impugned order passed by learned ASJ is very relevant in which it is categorically mentioned that criminal case FIR No.3063/2024 was registered on the complaint of Mst. Naseem Rani but subsequently she was

implicated as accused in the said FIR, however, the learned ASJ summoned respondents No.1 to 3 to face the trial in the private complaint, against whom no convincing, cogent and sufficient material is available on record while leaving respondents No.5 to 8 being police officials. It is an admitted fact that respondent No.2/complainant neither challenged the investigation, in which she was implicated as accused and her role was changed from complainant to culprit nor she challenged the recovery of articles affected from her which means she was fully satisfied with the investigation.

5. As per law, the complaint is to state the facts to satisfy the Court of the existence of every ingredient of alleged offence, otherwise, complainant would not be entitled to invoke aid of the Court and to foist travails of criminal trial on a person, accused by him. In order to constitute offence, complainant must disclose existence of both basic ingredients namely unlawful act “*actus rea*” and criminal intent “*mens rea*” on the part of accused. Before issuing process, the Court is under obligation to satisfy itself for the purpose of ascertaining the truth or falsehood of the complaint as to the existence or non-existence of sufficient grounds to issue process against the accused. Main object of dealing with the examination of complaint under Section 200 Cr.P.C. is to protect the public from false, frivolous and vexatious complaints filed against them. Court cannot proceed to issue process against accused until and unless, it is satisfied that *prima facie* case has been made out against those who are accused of the alleged criminal offence. Reliance in this regard is placed upon the case reported as Ghulam Hyder v. The Special Judge, Anti-Corruption (P) Hyderabad and 5 others (2020 MLD 634). In another case reported as Muhammad Rajar v. The State through Prosecutor General Sindh and others (PLD 2025 Supreme Court 40), the Honorable Supreme Court of Pakistan observed as under:

“The provisions of Sections 202, 203, and 204 of the Cr.P.C. require trial courts to conduct a thorough examination of the evidence supporting allegations made against individuals. In this context, the trial court must consider not only the factual basis for the accusations but also the underlying purpose of bringing those charges forward. This includes evaluating whether there is a legitimate objective behind the allegations or if they serve to unjustly target or harass the accused. Moreover, the trial court should assess the possibility of victimization, ensuring that individuals are not subjected to legal actions that could lead to unnecessary distress or humiliation.”

In the instant case, the admission of private complaint by the learned trial court clearly amounts to misuse and abuse of process of law and by doing so, the learned Additional Sessions Judge in fact allowed the alleged principal accused/respondent No.2 to shift her responsibility and criminality on the other side, who prima facie are innocent.

6. In the aforementioned circumstances, this revision petition is accepted and the impugned order being nullity in the eye of law is set aside, resultantly the private complaint filed by respondent No.2 is dismissed.

(ABHER GUL KHAN)
JUDGE

Approved for reporting

JUDGE